

NONDISCLOSURE AGREEMENT

This Non-Disclosure Agreement (“**Agreement**”) is entered into by the person or entity identified in the signature box below (“**Recipient**”) for the benefit of Confidential Client (as defined below). In connection with one or more proposed business transactions between Recipient and Confidential Client, Recipient may receive certain Confidential Information belonging to Confidential Client. In consideration of the receipt of such information, Recipient agrees as follows:

1. **Definitions.** “**Affiliate**” means, with respect to any entity, any other entity that directly or indirectly controls, is controlled by or is under common control with that entity. the “**Confidential Client**” means the currently undisclosed client of KBC Advisors – Services, LLC or its Affiliates, the identity of which will be disclosed in writing to Recipient following the execution of this Agreement. “**Confidential Information**” means all nonpublic information disclosed to Recipient by KBC or Confidential Client that relates to Confidential Client and that is designated as confidential or that, given the nature of the information or the circumstances surrounding its disclosure, reasonably should be considered as confidential. Confidential Information does not include any information that (i) is or becomes publicly available without breach of this Agreement, (ii) was known by Recipient prior to its receipt from KBC or Confidential Client, (iii) is disclosed to Recipient from any third party, except where Recipient knows, or reasonably should know, that such disclosure constitutes a wrongful or tortious act, or (iv) is independently developed by Recipient without use of any Confidential Information. “**GORA**” means the Georgia Open Records Act, O.C.G.A. § 50-18-70 *et seq.*

2. **Obligation of Confidentiality.** Recipient may use Confidential Information only in pursuit of its business relationship with the Confidential Client. Recipient shall not disclose Confidential Information without Confidential Client’s prior written consent, except that Recipient may disclose Confidential Information to such of its employees, contractors, advisors, lenders, agents and contractors collectively (collectively, “**Personnel**”) who (i) has a bona fide need to know the Confidential Information, and (ii) is legally obligated to protect the Confidential Information to the same or greater degree as required under this Agreement. Recipient shall take reasonable measures to avoid disclosure, dissemination or unauthorized use of Confidential Information, including, at a minimum, those measures it takes to protect its own confidential information of a similar nature.

3. **Permitted Disclosures.** Recipient may disclose Confidential Information as required to comply with orders of governmental entities with jurisdiction over it, if Recipient (i) gives Confidential Client prior written notice sufficient to allow Confidential Client to seek a protective order or other remedy (except to the extent that Recipient’s compliance would cause it to violate an order of the governmental entity or other legal requirement), (ii) discloses only such information as is required by the governmental entity, and (iii) uses commercially reasonable efforts to obtain confidential treatment for any Confidential Information so disclosed. Notwithstanding the above, Recipient’s compliance with GORA and the provision of records for any request made thereunder by Recipient shall be a permitted disclosure under this Agreement.

4. **Return of Confidential Information.** At the request of the Confidential Client, Recipient shall promptly return all Confidential Information and shall destroy all other written material containing or reflecting any information in the Confidential Information and shall not retain any copies, extracts or other reproductions in whole or in part thereof, except that Recipient may retain copies Confidential Information solely for archival, audit, disaster recovery, legal and/or regulatory purposes, including compliance with GORA.

5. **Ownership of Confidential Information.** All Confidential Information will remain the exclusive property of Confidential Client. Recipient shall not use the names, addresses, logos, trademarks, or trade names of Confidential Client in publicity releases, promotional material, advertising, marketing or business generating efforts of any nature, without Confidential Client’s prior written consent.

6. **Injunctive Relief.** Recipient acknowledges that a breach of its obligations under this Agreement would cause irreparable harm to Confidential Client as to which monetary damages may be difficult to ascertain or an inadequate remedy. Recipient agrees that Confidential Client will have the right, in addition to its other rights and remedies, to injunctive relief for any violation of this Agreement. Should Confidential Client request Recipient to assert legally available exemptions or withholdings of Confidential Information which Recipient has been requested to provide to a third-party under GORA Confidential Client shall reimburse the actual costs of Recipient in complying with such request, including attorney’s fees incurred by Recipient in such efforts.

7. **Scope; Term.** This Agreement covers Confidential Information received by Recipient prior and subsequent to the date of this Agreement. This Agreement shall continue for a period of two years after its execution by Recipient. The obligations of confidentiality set forth in this Agreement shall survive termination for ~~five~~three years following the termination of this Agreement.

8. **Miscellaneous.** If a provision of this Agreement is held invalid under applicable law, such invalidity will not affect any other provision of this Agreement that can be given effect. The failure or delay by Confidential Client in exercising any rights under this Agreement will not constitute a waiver. This Agreement constitutes the entire agreement between the parties relating to the matters discussed herein and may be amended, modified, or waived only with the mutual written consent of the parties. Recipient may not assign this Agreement without Confidential Client’s prior written consent. The laws of the state of ~~Delaware~~Georgia, without regard to its choice of law rules, govern this Agreement. This Agreement may be signed and transmitted electronically.

RECIPIENT:

Company Name: _____

By (Signature): _____

Printed Name: _____

Title: _____

Development Authority of the City of Milledgeville
and Baldwin County

By: _____

Jonathan Jackson, Executive Director

Date: _____